

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey McCann	Team: Squad #11	CCRB Case #: 201900656	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 01/15/2019 1:54 AM	Location of Incident: inside of § 87(2)(b)	Precinct: 52	18 Mo. SOL 7/15/2020	EO SOL 3/1/2021	
Date/Time CV Reported Tue, 01/15/2019 1:57 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/22/2019 10:59 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jeffrey Griffin	01105	934963	052 PCT
2. POM Derek Bernard	21066	951542	052 PCT
3. POM Md Alam	08042	961604	052 PCT
4. POM Travis Mitariten	04525	955203	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM David Rodriguez	02351	961191	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Jeffrey Griffin	Force: Sergeant Jeffrey Griffin used physical force against § 87(2)(b)	
B.POM Derek Bernard	Force: Police Officer Derek Bernard used physical force against § 87(2)(b)	
C.POM Md Alam	Force: Police Officer Md Alam used physical force against § 87(2)(b)	
D.POM Travis Mitariten	Force: Police Officer Travis Mitariten used physical force against § 87(2)(b)	

Case Summary

On January 15, 2019, Sergeant Jeffrey Grimm of the 52nd Precinct filed this complaint with IAB via telephone on behalf of § 87(2)(b). The complaint was received at the CCRB on January 22, 2019.

On January 25, 2019, a NYC DOC database search was conducted, which revealed that § 87(2)(b) was currently incarcerated. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

On the same day, a call was placed to the Bronx Legal Aid, which informed the investigation that § 87(2)(b)'s case was transferred to the Bronx Defenders. A call was subsequently placed to the Bronx Defenders, which informed the investigation that § 87(2)(b)'s defense attorney was § 87(2)(b) and provided § 87(2)(b) telephone number and email address.

On January 28, 2019, a call was placed to the number provided for § 87(2)(b) but the number was not in service. On the same day, an email was sent to § 87(2)(b) requesting that she contact the investigation.

On January 29, 2019, § 87(2)(b) contacted the investigation and said she would speak with § 87(2)(b) about providing a statement on February 1, 2019. § 87(2)(b) said she would contact the investigation after speaking with § 87(2)(b).

On February 7, 2019, a call was placed to § 87(2)(b), who said both she and § 87(2)(b) decided it would be best for § 87(2)(b) not to provide a statement until the conclusion of his criminal case. The undersigned explained the reopen process to § 87(2)(b). § 87(2)(g)

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date